

EXHIBIT "A"

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA

Case No.: 2022-CC-4105

Colonial Manor MHC Holdings, LLC
Plaintiff,

vs.

Jeanie Grace Dicicco,
Howard Vincent Blackwell,
Palmetto, FL 34221.
Defendants.

/

FIRST AMENDED ANSWER AND AFFIRMATIVE DEFENSES

COMES NOW, Jeanie Grace Dicicco, Howard Vincent Blackwell, Ryan Scott Dudley, and Minor John Doe, and files this answer and affirmative defenses as follows:

1. Denied. Defendants are occupants who were approved by management when they moved in, with their dog and with their minor child. Scott Dudley is an approved disabled occupant who lived with his mother previously before Dicicco and Blackwell were approved.

2. Without knowledge, therefore denied.

3. Without knowledge, therefore denied.

4. Admit, but the rental agreement is with owner of the manufactured home Iris Williams.

5. Denied. Dicicco and Howard applied to Management for approval. Management was aware that Scott Dudley, the dog and the minor child were part of their family. As, other families with minor children and dogs already lived in the park, Dicicco and Howard found it reasonable to rely on management's approval of their application.

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However, after Colonial Manor unreasonably and unlawfully sought eviction, Dicicco and Howard have been damaged.

6. Admit, but the rental agreement is with owner of the manufactured home; Iris Williams.

7. Denied. By accepting the rental agreement between themselves and Williams, and relying on their application approval from the Colonial Manor as to their family being allowed to live at Colonial Manor.

8. Admit to residing at Lot 155, denied as to not having consent. Plaintiff did consent to Dicicco and Howard, their family and their dog as residents at the time they moved in.

9. Denied. Plaintiff waived Rule 6 by accepting Dicicco and Howard's application and by allowing other dogs to live with other families at Colonial Manor.

10. Denied.

11. Admit to receiving notice.

12. Admit to the notice being posted.

13. Denied. The alleged violations were waived by the Plaintiff at the time Colonial Manor approved Dicicco and Howard's application.

14. Denied.

15. Admit that Exhibit was posted.

16. Denied.

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17. Denied.

18. Denied.

19. Denied.

20. Admit to receiving certified mail.

21. Admit to posting.

22. Denied.

23. Denied.

24. Admit to posting.

25. Denied.

26. Denied.

27. This paragraph was not included in the service document or on the docket, therefore no reply has been made.

28. This paragraph was not included in the service document or on the docket, therefore no reply has been made.

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31. This paragraph was not included in the service document or on the docket, therefore no reply has been made.

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33. This paragraph was not included in the service document or on the docket, therefore no reply has been made.

34. Without knowledge. Defendants pay their rent to the owner of the structure Iris Williams.

35. Denied, prevailing party will be entitled to fees and costs arising from this action.

36. Admit that Plaintiff is seeking damages less than \$15,000.

37. Defendants re-answer paragraphs 1-9 and 11-35 as though fully set forth herein.

38. Denied. Defendants are approved occupants (by Colonial Manor) (including the dog, minor child and forth person) and a tenant of Iris Williams.

39. Denied. Defendants have suffered damages as result of Plaintiff's wrongful eviction attempts. Defendants continue to suffer damages.

40. Without knowledge and therefore denied.

AFFIRMATIVE DEFENSES

First Affirmative Defense

(Breach by other Party)

Plaintiff's wrongful attempts to evict Defendants are unjustified.

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Second Affirmative Defense

(Fraud)

By approving Defendants' application, in the presence of their minor child and dog, Plaintiff induced defendants to rent Lot 155 from Iris Williams, knowing that at anytime Plaintiff could rely on the threat of court to wrongfully evict the Defendants on violations of rules that were previously waived by the Plaintiff in order to induce Defendants to enter their lease with Iris Williams.

Third Affirmative Defense

(Illegality)

Plaintiff has illegally attempted to evict the Defendants by allowing other dogs and other children in Colonial Manor, while pursuing the Defendants, which were approved by Colonial Manor, for doing nothing material and nothing different than the other occupants.

Fourth Affirmative Defense

(Unconscionability)

It is unconscionable that Plaintiff has fraudulently induced the Defendants by approving their occupancy application (knowing of the dog, minor child and forth person, then pursuing possession based on information they had when they approved Defendants' application for occupancy.

Fifth Affirmative Defense

(Violation of Florida and Federal Fair Housing)

It appears that Colonial Manor had changed management companies after the Defendants were approved. And only after Colonial Manor hired new management have the Defendants been singled out among other occupants who have dogs, or minor children.

Sixth Affirmative Defense

(Selective Enforcement)

Fla. Stat 723.061(1)(c)(2) states in part: "A properly promulgated rule or regulation may not be arbitrarily applied and used as a ground for eviction." To the extent Plaintiff's Complaints about the property constitute rules violations, similar conditions exist throughout the park without enforcement from Plaintiff. Plaintiff's attempted enforcement in this case constitutes selective/arbitrary enforcement and should be disallowed.

Seventh Affirmative Defense

(Waiver)

Fla. Stat. § 680.208(4) which states:

(4) A party who has made a waiver affecting an executory portion of a lease contract may retract the waiver by reasonable notification received by the other party that strict performance will be required of any term

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waived, ***unless the retraction would be unjust in view of a material change of position in reliance on the waiver. (Emphasis Added)***

Facts that support Waiver are as follows:

- a. Diccico and Howard applied to Management for approval. Management was aware that Scott Dudley, the dog and the minor child were part of their family. As other families with minor children and dogs already lived in the park, Diccico and Howard found it reasonable to rely on management's approval of their application.
- b. By accepting the rental agreement between themselves and Williams, and relying on their application approval from the Colonial Manor as to their family being allowed to live at Colonial Manor.
- c. Plaintiff waived Rule 6 by accepting Diccico and Howard's application and by allowing other dogs to live with other families at Colonial Manor.
- d. The alleged violations were waived by the Plaintiff at the time Colonial Manor approved Diccico and Howard's application.
- e. Defendants are approved occupants (by Colonial Manor) (including the dog, minor child and fourth person) and a tenant of Iris Williams.
- f. Plaintiff's wrongful attempts to evict Defendants are unjustified.
- g. It is unconscionable that Plaintiff has fraudulently induced the Defendants by approving their occupancy application (knowing of the dog, minor child and fourth person, then pursuing possession based on information they had when they approved Defendants' application for occupancy.
- h. That Jeanie Grace Diccico's mother moved into the Park in or
around 2019 with defendant Ryan Scott who;
 - i. **is under the age of forty,**
 - ii. **is disabled, and**
 - iii. **requires adult management and care.**

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- i. In May of 2021, Jeanie Diccico , Howard Blackwell and their minor child moved into the park to assist Jeanie Diccico's mother with the care of Ryan Scott because Jeanie Diccico' mother's health was declining to the point she was unable to properly provide the care of Scott Dudley without assistance.
- j. When Jeanie Diccico, Howard Blackwell and their minor child moved into the park to help care for Ryan Scott, Ryan Scott would spend time with his sister, brother in law, and nephew, at the subject property, but at all times maintained his residence at his mother's home.
- k. Presently Jeanie Diccico is managing and helping her mother care for Ryan Scott, but she is unable to do so all by herself.
- l. If Jeanie Diccico , Howard Blackwell and their minor child are evicted from the park, the care of Ryan Scott will be greatly compromised, whether or not Ryan Scott is evicted from his mother's home.
- m. It is unjust, unconscionable, and cruel for the Plaintiff to retract its waiver.

CLAIM FOR ATTORNEY'S FEES

If Defendants, or either one of them, are the prevailing parties in this action, they are entitled to an award of reasonable attorney's fees.

Dated this 10th day of October 2023.

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/s/ Christopher Mat Hittel
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Service of Court Documents:**
service@hittellaw.com

CERTIFICATE OF SERVICE

I hereby certify that a true copy was electronically filed with the Manatee County Clerk of Court using the Florida Courts E-Filing Portal and served to on October 10, 2023.

/s/Christopher M. Hittel
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